

	plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. <i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at 854-855. See also <i>Union Bank v. Superior Court</i> (1995) 31 Cal.App.4th 573, 590 (finding moving defendant may show plaintiff's lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery); <i>Scheidig v. Dinwiddie Const. Co.</i> (1999) 69 Cal.App.4th 64, 80-81 (finding <i>Union Bank</i> rule only applies where discovery requests are broad enough to elicit all such information); <i>Weber v. John Crane, Inc.</i> (2006) 143 Cal.App.4th 1433, 1441-1442. Once the defendant's burden is met, the burden shifts to the plaintiff to show that a triable issue of material fact exists as to that cause of action. <i>Villacres v. ABM Industries, Inc.</i> (2010) 189 Cal.App.4th 562, 575. To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. <i>Sangster v. Paetkau</i> (1998) 68 Cal.App.4th 151, 163. Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. <i>Doe v. Salesian Society</i> (2008) 159 Cal.App.4th 474, 481; <i>Bushling v. Fremont Med. Center</i> (2004) 117 Cal.App.4th 493, 510. The moving party's affidavits are strictly construed while those of the opposing party are liberally construed. <i>Villacres v. ABM Industries, Inc.</i>, 189 Cal.App.4th at 575. The facts alleged in the evidence of the party opposing summary judgment and the reasonable inferences therefrom must be accepted as true. <i>Id.</i> ///
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Discussion

**First Cause of Action for
Recoupment/Reimbursement**

Availability of Relief

In *Blue Ridge Insurance Company v. Jacobsen*, the California Supreme Court answered the question “[w]hether an insurer defending a personal injury suit under a reservation of rights may recover settlement payments made over the objection of the insured when it is later determined that the underlying claims are not covered under the policy.” *Blue Ridge Ins. Co. v. Jacobsen* (2001) 25 Cal.4th 489, 492 (internal quote marks removed).

Relying heavily on the principles, reasoning, and analytic framework in *Buss v. Superior Court* (1997) 16 Cal.4th 35 (*Buss*), where the Court held that an insurer may seek reimbursement from the insured for defense costs that can be allocated solely to claims not even potentially covered, in *Blue Ridge* the Court found that an insurer may seek reimbursement for monies paid in settlement for an uncovered claim. 25 Cal.4th at 502.

[In *Buss*, w]e concluded reimbursement should be available because **the insurer had not bargained to bear these costs and the insured had not paid the insurer premiums for the risk.** (*Id.* at pp. 50, 51, 65 Cal.Rptr.2d 366, 939 P.2d 766.) “The insurer therefore has a right of reimbursement that is implied in law as quasi-contractual, whether or not it has one that is implied in fact in the policy as contractual. As stated, **under the law of restitution such a**